

IN THE EMPLOYMENT TRIBUNAL

Claimant: [The Claimant]

Respondent: [The Respondent]

GROUND OFS OF CLAIM

1. Introduction

1.1 The Claimant, a valuation specialist who is on the autism spectrum, brings claims for direct disability discrimination (s.13 Equality Act 2010), discrimination arising from disability (s.15 EqA), victimisation (s.27 EqA), and failure to make reasonable adjustments (ss.20-21 EqA) arising from his application for the role of [Role Title] (reference [Reference Number]) ("the Role") in [Month] [Year]. These claims are brought under section 39 of the Equality Act 2010, which applies the foregoing prohibitions to the recruitment context.

1.2 The central contention is that the Respondent invited the Claimant to a one-hour competitive interview with two senior professionals, then—within hours of receiving his adjustment request describing needs consistent with autism—reclassified the interview to a "Meet and Greet" with five basic questions provided in advance. The interview that followed raised no objections or challenges, contained no technical testing, gave praise without follow-up, and lasted approximately 30 minutes instead of the scheduled hour. The Claimant was rejected on grounds that were never raised or tested during the interview. The interview also failed to implement any genuine adjustments, substituting instead a lighter process that removed the opportunity to compete.

2. The Claimant's Disability

2.1 The Claimant is a disabled person within the meaning of Section 6 of the Equality Act 2010. The Claimant is autistic.

2.2 The Claimant's disability affects how he processes information. He performs best when the success criteria of a question are explicit. He is disadvantaged by implicit expectations, ambiguous instructions, and multilayered verbal questions that require him to hold multiple strands of information simultaneously.

2.3 These effects are relevant to how the Claimant experiences a standard competitive interview, which typically relies on implicit expectations, unstructured questioning, and multilayered verbal reasoning under time pressure.

3. The Application and Invitation to Interview

3.1 On [Date], the Claimant applied to the Respondent for the Role, which was based at the Respondent's [Location] office.

3.2 On [Date], the Claimant received an invitation from [HR Contact Name] (Talent Acquisition, [the Respondent]) to interview. The interview was scheduled for one hour with [Interviewer 1 Name] ([Title 1]) and [Interviewer 2 Name] ([Title 2]).

3.3 The invitation stated that the Respondent was "committed to working with and providing reasonable accommodations to individuals with disabilities."

3.4 At this point, before any disclosures by the Claimant, the Respondent considered the Claimant a credible candidate and had allocated a one-hour slot with two senior professionals to assess him.

4. The Claimant's Two Disclosures

4.1 At approximately [Time] on [Date], the Claimant emailed the Respondent stating:

"There are a few considerations that could potentially improve my performance: Clear objective definition. I perform best when the success criteria of the question are explicit. Minimise implicit expectations. Avoid multilayered questions to reduce cognitive load. Could you forward this to my interviewers?"

4.2 This request described needs consistent with autism. It put the Respondent on notice that the Claimant likely had a protected characteristic and required reasonable adjustments to the interview process.

4.3 Also on [Date], the Claimant completed a compliance questionnaire submitted through the Respondent's systems. The questionnaire directly asked about dismissals from previous employment. In response, the Claimant disclosed that he had been dismissed by his previous employer, [Previous Employer Name], and that this dismissal was the subject of a live employment tribunal claim for disability discrimination.

4.4 This was a second disclosure. It informed the Respondent—as a corporate entity—that the Claimant had previously enforced his legal rights in respect of disability discrimination.

5. The Respondent's Response—The Interview Is Reclassified

5.1 On [Date] at [Time]—approximately five and a half hours after the Claimant's adjustment request—[HR Contact Name] ([Title], Talent Acquisition, [the Respondent]) responded to the Claimant. She stated:

"This will be more of a 'Meet and Greet' interview. Below are the basic questions the interviewers typically ask at the initial phase. Success criteria include clear communication, active listening and professional engagement."

5.2 [HR Contact Name] listed five questions: walk me through the most relevant parts of your resume; why are you looking to make a career change now; discuss relevant market or industry trends; describe a time when you had to gain consensus or work with a difficult stakeholder; what do you like to do outside of work.

5.3 The interview was reclassified from a standard one-hour competitive assessment to a "Meet and Greet." This reclassification occurred within hours of the Claimant's adjustment request. The Claimant had been deemed credible enough for a full competitive interview. After disclosing needs consistent with autism, he was moved to a lighter, less rigorous process.

6. The Interview Itself

6.1 The interview took place on [Date] with [Interviewer 1 Name] and [Interviewer 2 Name]. It had been scheduled for one hour. It lasted approximately 30 minutes.

6.2 The following features of the interview support the inference that it was not a genuine competitive assessment but a performative exercise.

6.3 No objections or challenges were raised. At no point during the interview did either interviewer challenge any of the Claimant's answers, probe the relatively short tenures shown on his CV, follow up when he gave abstract or non-specific responses, explore gaps in his experience, ask him to clarify or expand on any point, test whether he could defend a position under scrutiny, or raise a single concern or criticism. Specific examples include: the Claimant stated "Actually, I don't know to be honest with you" in response to a question about preference shares—this was not followed up; his CV showed short tenures—this was not explored; he stated he was not a production coder—this was not discussed; multiple answers were abstract and general—none were challenged.

6.4 Technical topics were discussed but not tested. The conversation touched on bond spreads, credit risk assessment, prudent valuation, AVAs, bid-offer spreads, market data quality, and private equity complexity. However, the Claimant was never asked to solve a problem, analyse a scenario, price an asset, demonstrate applied competence, or work through a valuation methodology. The published job description specified knowledge of specific valuation techniques. No structured technical testing occurred.

6.5 Praise was given without follow-up. An interviewer told the Claimant words to the effect that he had accurately identified the core principles of the role. In a genuine interview, praise functions as a bridge to deeper probing. Here, it functioned as a full stop. It was not followed by any further exploration, request for examples, or deeper questioning.

6.6 The Claimant was asked an unusual question about error frequency. One interviewer asked the Claimant words to the effect of how often he had been wrong.

This question stood out in an interview otherwise devoid of challenge. It asked the Claimant to quantify a frequency of personal failure, rather than to describe a specific instance and what was learned. In context—the Claimant having disclosed needs consistent with autism, and the interview containing no technical testing or substantive challenge—this question supports the inference that the interviewers were focused on perceived disability-related deficits rather than on genuine assessment.

6.7 The interview ended with apparent approval, yet the Claimant was rejected. No criticisms were raised. No concerns were expressed. The tone was collegial and positive throughout. The interviewers gave no indication that the Claimant's performance was unsatisfactory. The Claimant was subsequently rejected.

6.8 The duration was significantly shorter than scheduled. The interview was booked for one hour. It lasted approximately 30 minutes. A portion of that time was occupied by the interviewers explaining the team structure. The time available for the Claimant to demonstrate competence was compressed into what remained.

6.9 Conclusion on the interview. The interview was structured in a way that produced no basis for a negative decision. A negative decision followed nonetheless. The interview had the outward form of a proper process but lacked the substance of genuine assessment.

7. The Rejection

7.1 On [Date], the Claimant was verbally informed by [HR Contact Name] that his application had been unsuccessful. The reason given was that the Claimant lacked sufficient valuation experience.

7.2 The Claimant subsequently requested the reason for rejection in writing.

7.3 On [Date], [HR Contact Name] provided a written response stating three reasons for rejection: (a) "Significant gaps with role requirements"; (b) "Lack of direct private asset valuation experience"; (c) "Background is largely risk/model validation, not hands-on experience of building valuation models for fair value purposes."

7.4 These reasons are inconsistent with the conduct of the interview. At no point during the interview did either interviewer challenge the Claimant's valuation experience, probe his knowledge of the valuation techniques listed in the job description, or raise any concern about a lack of relevant experience. The Claimant's CV, which clearly stated his background in risk and model validation, was available to the Respondent before the interview invitation was issued. The Respondent nevertheless considered the Claimant sufficiently qualified to shortlist him. The concerns now raised were apparent on the face of the CV and did not prevent the Claimant from being invited to interview. The interview was reclassified as a "Meet and Greet" and contained no structured

technical assessment. The Respondent cannot credibly reject the Claimant for lacking skills it never tested.

7.5 The written reasons differ in part from the verbal reason given. The Claimant was not informed of reasons (a) or (c) during the verbal rejection. The introduction of additional reasons after the fact, none of which were raised or tested during the interview, supports the inference that the stated reasons are a post-hoc justification and not the genuine basis for the decision.

8. Section 39—The Gateway Provision

8.1 Section 39 of the Equality Act 2010 makes it unlawful for an employer to discriminate against a person in the recruitment process. Section 39(1)(a) covers the design and conduct of the interview process, including its reclassification and the absence of meaningful assessment. Section 39(1)(c) covers the decision to reject the Claimant. Section 39(5) applies the duty to make reasonable adjustments. Section 39(3) makes victimisation unlawful in recruitment.

9. Section 13—Direct Discrimination

9.1 The Claimant was treated less favourably than a hypothetical comparator—a candidate who made no disclosures—who would have received a genuine competitive interview. The only thing that changed between the invitation and the interview was the Claimant's adjustment request, which described needs consistent with autism.

9.2 The facts from which the inference of discrimination arises are: the Claimant was invited to a one-hour competitive interview; he made two disclosures; within hours, the interview was reclassified; the interview that followed was hollow; and he was rejected on grounds never raised or tested. Under Section 136 of the Equality Act 2010, these facts are sufficient to shift the burden of proof to the Respondent.

9.3 This constitutes direct discrimination contrary to Sections 13 and 39(1)(a) and (c) of the Equality Act 2010.

10. Section 15—Discrimination Arising from Disability

10.1 The Claimant's disability affects how he processes implicit expectations and multilayered verbal questions. This led him to request adjustments. The adjustment request led to the interview being downgraded and the Claimant being rejected. The causal chain is: disability → adjustment request → downgraded interview and rejection.

10.2 Unlike Section 13, Section 15 does not require proof that the treatment was because of disability itself—only that it was because of something arising from disability. The "something" here is the adjustment request.

10.3 Once this causal chain is established, the burden shifts to the Respondent to prove that the treatment was a proportionate means of achieving a legitimate aim.

Downgrading an interview and rejecting a candidate without proper assessment is not proportionate.

10.4 This constitutes discrimination arising from disability contrary to Sections 15 and 39(1)(a) and (c) of the Equality Act 2010.

11. Sections 20-21—Failure to Make Reasonable Adjustments

11.1 The standard competitive interview process—with its implicit expectations, unstructured questions, and multilayered verbal reasoning—placed the Claimant at a substantial disadvantage compared to non-disabled candidates. The Respondent knew of this disadvantage because the Claimant explicitly stated his needs.

11.2 The Respondent appeared to grant adjustments by reclassifying the interview and providing questions in advance. But this was cosmetic, not substantive. Providing questions in advance could have been an effective adjustment if combined with genuine assessment. Instead, the Respondent removed both the disadvantage and the opportunity to compete. The "Meet and Greet" was not a genuine equivalent of a competitive interview. It was a lesser process that could not result in a fair hiring decision. An adjustment that removes the candidate from genuine consideration is not a reasonable adjustment. It is a procedural bypass.

11.3 This constitutes a failure to comply with the duty to make reasonable adjustments contrary to Sections 20, 21, and 39(5) of the Equality Act 2010.

12. Section 27—Victimisation

12.1 The Claimant made two protected acts: requesting reasonable adjustments (s.27(2)(c)), and disclosing in the compliance questionnaire that he had brought a live tribunal claim for disability discrimination (s.27(2)(a)).

12.2 Following these protected acts, the Claimant was subjected to detriments: the interview was downgraded, the process was stripped of rigour, and he was rejected. The reclassification occurred within hours of the adjustment request. The rejection followed both protected acts. The Claimant had been deemed credible enough for a full competitive interview before the protected acts; after them, he was moved to a lesser process and rejected.

12.3 The inference is that the detriments occurred because the Claimant made the protected acts. This constitutes victimisation contrary to Sections 27, 39(3), and 39(1)(a) and (c) of the Equality Act 2010.

13. Remedy Sought

13.1 A declaration that the Respondent contravened the Equality Act 2010.

13.2 Compensation for injury to feelings.

13.3 Compensation for financial loss.

13.4 Aggravated damages.

13.5 Interest.

13.6 Such further or other relief as the Tribunal thinks just.